

12	24-01407549 <i>Sandoval vs. General Motors, LLC.</i>	Motion to Set Aside/Vacate Dismissal Plaintiffs’ Christian Sandoval and Alejandro Sandoval’s Motion to Set Aside Dismissal is GRANTED. The dismissal was entered on 12/15/25. Plaintiffs moved to set aside on 12/18/25. Thus, Plaintiff’s motion is timely. Additionally, Plaintiffs’ counsel provides a declaration stating attorney Tim Butler was present and intended to appear at the hearing for this case but had 2 other appearances on the same morning. (Butler Decl., ¶¶3-11.) Thus, relief is mandatory, and the dismissal is set aside. (Code Civ. Proc., § 473, subd. (b).)
14	24-01407549 <i>Vandermeer vs. Bombardier Recreational Products, a corporation</i>	Motion for Summary Judgment and/or Adjudication Defendant BRP US, Inc.’s Motion for Summary Judgment is DENIED. <u>Legal Standard</u> Code of Civil Procedure section 437c(c) states, “(c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Section 437c(f)(1) provides, “(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Section 437c(o)-(p) states: “(o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication: